

## Exhibit D

### Spousal Rights Clarification

Attached to and incorporated into the Non-Judicial Settlement Agreement  
dated \_\_\_\_\_, 2026

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

#### I. Purpose

Article 5.7 of the Flanagan Family 321 Trust Agreement provides that upon the death of a beneficiary, that beneficiary's interest must first be offered to the Trust and then to the remaining beneficiaries. If neither the Trust nor the remaining beneficiaries purchase the interest, it "shall pass to his or her heirs."

The Trust Agreement does not define "heirs" in this context and does not specifically address the rights and responsibilities of spouses of beneficiaries.

This Exhibit clarifies the succession of beneficial interests with respect to spouses and descendants to ensure continuity of the Camp Property within the Settlor's family line.

#### II. Applicability

This clarification applies to all current and future active beneficiaries of the Flanagan Family 321 Trust, including:

John M. Flanagan  
Christopher J. Flanagan  
Jennifer Yommer  
Martha Foss  
Joseph M Birkhead

and any future beneficiaries who may acquire an interest in the Trust.

#### III. Succession Upon Death of a Beneficiary

Upon the death of an active beneficiary, the following succession shall apply:

##### Step 1: Right of First Refusal (Article 5.7)

The deceased beneficiary's interest must first be offered to the Trust, and then to the remaining active beneficiaries, at the assessed value for municipal tax purposes, as provided in Article 5.7.

##### Step 2: If Not Purchased – Spousal Inheritance

If neither the Trust nor the remaining beneficiaries elect to purchase the deceased beneficiary's interest under Article 5.7, and the deceased beneficiary has no living children or no adult children at the time of death, the surviving spouse of the deceased beneficiary shall inherit:

- a. The deceased beneficiary's entire beneficial interest in the Trust.
- b. All rights associated with that interest, including the right to use the Camp Property, the right to vote as a beneficiary, and the right to receive income distributions.

- c. All obligations associated with that interest, including the obligation to pay the proportionate share of expenses under Article 5.3.

#### Step 3: If Not Purchased – Children Exist

If neither the Trust nor the remaining beneficiaries elect to purchase the deceased beneficiary's interest under Article 5.7, and the deceased beneficiary has living adult children, the interest shall pass to those children in equal shares per stirpes, consistent with the Trust Agreement's definition in Article 1.5.

#### Step 4: Succession from Surviving Spouse

Upon the death of a surviving spouse who inherited an interest under Step 2 above, or if that surviving spouse chooses to no longer participate in the Trust:

- a. The beneficial interest shall pass to the children (descendants) of the original beneficiary (the spouse's deceased partner), in equal shares per stirpes.
- b. If the original beneficiary had no children or descendants, the interest shall be redistributed equally among the remaining active beneficiaries of the Trust.
- c. The right of first refusal under Article 5.7 applies before any redistribution under this Step.

#### IV. Spouse Defined

For purposes of this clarification, "spouse" means a person who is legally married to the beneficiary under the laws of the State of Maine at the time of the beneficiary's death.

#### V. Spouse's Rights and Obligations During Participation

A surviving spouse who inherits a beneficial interest shall have:

- a. The same rights as any other beneficiary, including use of the Camp Property, voting rights, and income distributions.
- b. The same obligations as any other beneficiary, including payment of proportionate expenses under Article 5.3.
- c. The right to voluntarily relinquish their interest at any time by written notice to the Co-Trustees. Upon relinquishment, the interest shall pass to the descendants of the original beneficiary or be redistributed as described in Section III, Step 4 above.

#### VI. No Expansion Beyond Family Line

This clarification is intended to keep beneficial interests within the Settlor's family line. A surviving spouse holds the interest as a bridge to the next generation of the Settlor's descendants.

- a. A surviving spouse may not transfer, assign, or sell their inherited interest to any person other than descendants of the original beneficiary, except through the right of first refusal

process in Article 5.7.

- b. A surviving spouse's new spouse (through remarriage) does not acquire any beneficial interest in the Trust by virtue of the marriage.

VII. Interaction with Article VII (Restriction of Alienation)

This clarification is consistent with Article VII of the Trust Agreement, which prohibits alienation of Trust interests. The succession described herein operates by agreement of all interested persons under 18-B M.R.S. Section 111, not by assignment or alienation.

VIII. Signatures

All parties to the Non-Judicial Settlement Agreement acknowledge and agree to this Spousal Rights Clarification by their signatures on the Non-Judicial Settlement Agreement. No additional signatures are required on this Exhibit.

Acknowledged by Co-Trustees:

John M. Flanagan, Successor Co-Trustee

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Christopher J. Flanagan, Successor Co-Trustee

Signature: \_\_\_\_\_

Date: \_\_\_\_\_